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CASE #	CASE NAME	HEARING NAME
CVPS2505265	YIP VS HEDBERG CONSTRUCTION, INC.	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF GEEMAN YIP BY HEDBERG CONSTRUCTION, INC.

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

Defendant moves to strike paragraphs 77 to 85 of the FAC (the 7th cause of action for fraud), the prayer for punitive and exemplary damages, and any allegations seeking punitive damages. Defendant asserts that these paragraphs are conclusory and improper. In support, Defendant submits the declarations of counsel and Defendant's president to challenge the truth of the allegations.

In opposition, Plaintiff argues that Defendant's motion to strike is an improper attempt to conduct a "line-item veto." Plaintiff asserts that the court must assume the truth of the allegations and consider them in context. Plaintiff argues that Defendant cannot use extrinsic evidence (such as the declarations) to support the motion. Plaintiff argues that the FAC's pleadings are sufficient for punitive damages.

In reply, Defendant argues that Plaintiff's opposition failed to address the defects. It argues that merely labeling conduct as "fraudulent" is not sufficient. Defendant otherwise repeats its arguments in the moving papers.

Untimeliness of Plaintiff's Opposition to the Motion to Strike

Plaintiff filed and served the opposition to the motion to strike one day late due to a calendaring error calculated based on the 7/16/26 hearing date for the demurrer, rather than the 7/15/26 hearing date for the motion to strike. (Bauer Decl. ¶ 4.) While the opposition was technically untimely, the court has discretion to consider an untimely-served opposition. (See CRC 3.1300(d); *Slayton v. Superior Court* (2006) 146 Cal.App.4th 55, 58, n. 2; *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29.) More importantly, by filing a substantive reply on the merits, Defendant waived any defect or irregularity in the filing and service of the opposition. (See *Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.) Accordingly, the court will exercise its discretion to consider Plaintiff's opposition to the motion to strike on its merits.

Motion to Strike

The court may, upon a motion made pursuant to CCP §435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436). On a motion to strike, as with a demurrer, "the court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged." (*Washington Int'l Ins. Co. v. Sup. Ct.* (1998) 62 Cal.App.4th 981, 984, n. 2).

Defendant moves to strike paragraph 77 through 85, and prayers and allegations related to punitive and exemplary damages. In support, Defendant relies on the Declaration of Hedberg. In

his declaration, Hedberg declares that he never made the representations alleged, that the deposit was handled as agreed (§ 5), that his son was qualified (§ 7), that Plaintiff misconstrued the promised reimbursement (§ 8), and that “[e]verything [Plaintiff] invoiced for was completed” (§ 10).

However, the use of a declaration is improper on a motion to strike. The court must read allegations of a pleading subject to a motion to strike “as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) Challenging the truth of the allegations is a matter for summary judgment, not a motion to strike. Excluding the Hedberg Declaration, Defendant has presented no proper grounds on the face of the pleading to strike paragraph 77 through 85 of the FAC.

For punitive damages, a plaintiff must plead allegations of fraud, malice, or oppression with sufficient particularity. (*Hilliard v. AH Robbins Co.* (1983) 148 Cal.App.3d 374, 392.) Generally, claims for punitive damages must be pled with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.) However, the court may read the complaint as a whole so that conclusory allegations may be sufficient when read in context with the facts alleged as to the defendant’s wrongful conduct. (*Perkins v. Superior Court (General Tel. Directory Co.)* (1981) 117 Cal.App.3d 1, 6-7.) Fraud is “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294(c)(3).) Here, because the FAC has sufficiently pled misrepresentations to support a fraud claim, it has also sufficiently pled the basis for damages.

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CASE #	CASE NAME	HEARING NAME
CVPS2509122	RODRIGUEZ VS DEPARTMENT OF MOTOR VEHICLES	HEARING ON WRIT OF MANDATE (CEQA)

Tentative Ruling: Hearing continued on court’s own motion to August 5, 2026 at 8:30 a.m., Department PS2.

No further briefing will be permitted.